

**Strengthening international
cooperation in order to prevent
the illicit trafficking of cultural
property**

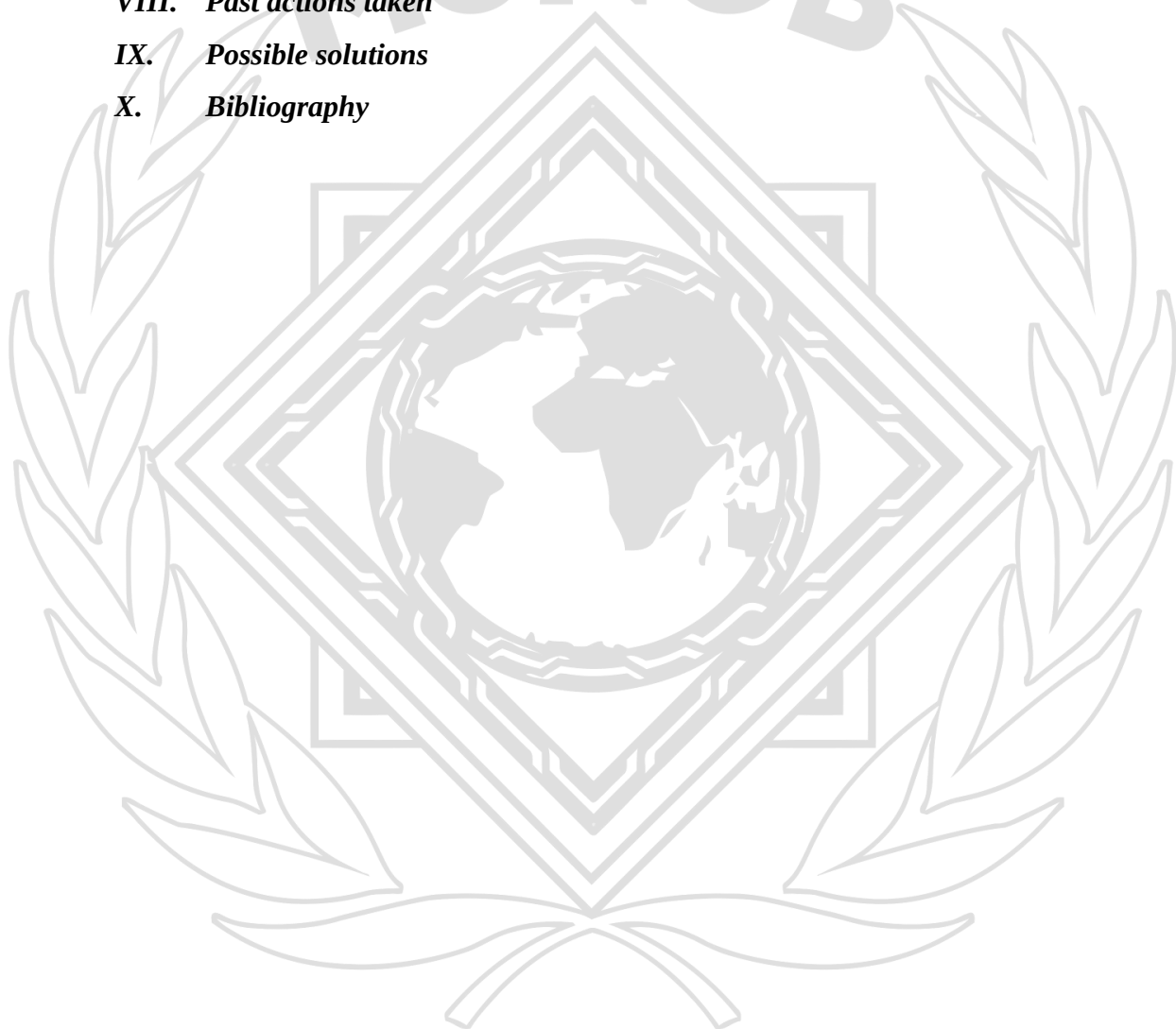
Social, Humanitarian & Cultural Issues (Third Committee)

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Table of contents:

- I. Introduction to the topic***
- II. Definition of key terms***
- III. Background information***
- IV. Key issues***
- V. Major parties involved***
- VI. Timeline of events***
- VII. Relevant UN treaties***
- VIII. Past actions taken***
- IX. Possible solutions***
- X. Bibliography***



**“A people without the knowledge of their past history, origin and culture
is like a tree without roots.”**

— Marcus Garvey

I. Introduction

The illicit trafficking of cultural property is not just "art theft," but a transnational crime that robs countries and people of their national history. This trafficking is a major source of funding for organized crime and terrorist groups, especially in conflict zones like the Middle East, but not only as the issue is not a localized problem but of most widespread all over the world. Each year, tens of thousands of artifacts, ranging from ancient coins and Byzantine icons to Roman statues and pre-Columbian ceramics, are looted from archaeological sites, stolen from museums, and smuggled across borders to satisfy a global market driven by wealthy collectors, unscrupulous dealers, and even terrorist organizations.

The scale of this crisis is staggering: in 2024 alone, international law enforcement operations led to the seizure of more than 37,000 cultural objects, yet experts believe this represents only a fraction of actual trafficking due to the clandestine nature of the crime. INTERPOL records over 8,500 cultural property offences annually worldwide, with some 91,000 objects stolen and nearly 223,000 objects seized in a single year. It is therefore imperative to fight against the issue as a community in order to facilitate the repatriation and track down mobile heritage, rebuilding lost history.

II. Definition of Key Terms

Cultural Property

Any property, whether secular or religious, which is specifically designated by a State as being of importance for archaeology, prehistory, history, literature, art, or science. This includes: statues, coins, manuscripts, and rare specimens.

Illicit Trafficking

The illegal import, export, or transfer of ownership of cultural property. This encompasses theft from museums or private collections, as well as clandestine excavations (looting) where objects are removed from the ground without scientific recording or state permission.

Provenance

The documented history of an object's ownership, from the moment of its discovery or creation to the present day. In legal disputes, a "clean provenance" is the primary proof that an item was not stolen or illegally exported.

Due Diligence

The standard of care that a buyer (museum, auction house, or collector) must exercise to ensure that an object has not been illegally traded. Under the 1995 UNIDROIT Convention, a possessor of a stolen object can only claim compensation if they can prove they exercised "due diligence" at the time of purchase.

Clandestine Excavation

Unauthorized digging at archaeological sites. This is particularly damaging because it destroys the archaeological context, the relationship between an object and its surroundings, which provides 90% of the historical information for researchers.

Export Certificate

A mandatory legal document issued by a state authorizing the departure of a cultural object from its territory. The absence of this document is often the primary evidence used to seize items at international borders.

Good Faith Purchaser

A legal concept referring to a person who buys an object without knowing (or having reason to suspect) that it was stolen. Modern international law is increasingly narrowing this definition to force buyers to be more skeptical of "bargains" with no paperwork.

III. Background Information

The illicit trafficking of cultural property is a global phenomenon characterized by several distinct patterns. First, we have the so-called source countries (predominantly in the Middle East, Latin America, Africa, and Asia) that suffer the initial loss through looting of archaeological sites, theft from poorly secured museums, or illegal excavation. The objects are then moved through complex smuggling networks, often passing through multiple intermediary countries before reaching market countries such as the United States, United Kingdom, Germany, Switzerland, and Japan where they are most often sold for unspeakable amounts of money.

The economics of this trade are revealing. Studies indicate that over 98 percent of the final sale price of smuggled antiquities ends up in the pockets of middlemen and dealers, while the original looters (often impoverished local populations) receive only a tiny fraction, but are still motivated due to precarious living condition. For example, a classical period table-leg from Turkey sold by a farmer for \$7,000 to a dealer was subsequently placed at auction in New York with an asking price of \$540,000. This enormous markup creates powerful incentives for criminal networks while leaving source communities impoverished of both their heritage and fair compensation.

Several contemporary developments have only made things more difficult for authorities in charge of combating trafficking. The rise of online marketplaces and social media platforms has provided new venues for anonymous sales, with traffickers using encrypted communications and cryptocurrency payments. The instability created by recent conflicts, in Ukraine, Afghanistan, and elsewhere, has left cultural sites vulnerable while diverting law enforcement attention. Additionally, the sheer volume of global art sales, combined with the difficulty of authenticating the sourcing, allows stolen objects to enter legitimate markets with relative ease.

IV. Key Issues for Debate

- Balancing Heritage Protection with Market Freedom calls for well managed measures and deeply thought actions as we ask ourselves: How can international cooperation be strengthened without imposing disproportionate burdens on legitimate art market participants and private collectors?
- What specific measures should be prioritized to sever the link between cultural property trafficking and terrorist financing, particularly in conflict zones?
- The issue of allocating responsibility: What are the respective obligations of source countries (to protect their heritage) versus market countries (to prevent illicit imports)?
- Seeing as the digital era is making things all the more complicated, how can international cooperation adapt to combat trafficking conducted through online platforms, encrypted communications, and cryptocurrency payments?
- How can we create a better repatriation system? What procedures should govern the return of cultural property to source countries, and how can disputes over ownership claims be resolved fairly?
- Finally, do we have the capacity to enforce these rules? How can technical and financial assistance be provided to source countries lacking resources to protect archaeological sites and secure museums, sites etc?

V. Major Countries and Organizations Involved

INTERPOL

INTERPOL assists law enforcement across 195 member countries through specialized databases like the Stolen Works of Art database and tools such as the ID-Art mobile app, thus maintaining the only international police database dedicated to stolen works of art, containing information on hundreds of thousands of objects accessible to law enforcement worldwide. The organization coordinates major international operations, including Operation Pandora (which has led to over 400 arrests and recovery of 147,050 cultural goods) and Operation Athena (joint police-customs operations). INTERPOL's Works of Art unit collects intelligence, analyzes crime trends, and assists member countries in developing specialized cultural property police units.

Italy's Carabinieri TPC (Comando per la Tutela del Patrimonio Culturale)

The Carabinieri TPC is widely regarded as the world's first and strongest specialized police unit for cultural property protection. It was established decades ago as it operates under both military and civilian law enforcement frameworks. It is probably one of the most efficient ways to guard national heritage. In a massive operation ("Patrimonio Sicuro") the Carabinieri TPC coordinated with prosecutors in Catania and Catanzaro to arrest 56 individuals involved in clandestine excavation and trafficking of archaeological artifacts.

Afghanistan

Decades of conflict have devastated Afghanistan's rich cultural heritage. In October 2022, UNESCO, INTERPOL, UNODC, and the World Customs Organization jointly called upon art market professionals to refrain from acquiring any cultural property that might have been illicitly removed from Afghanistan. In November 2025, authorities in Nimroz recovered 48 historical artifacts along a major transit route. Similarly, in Nangarhar Province, the Eastern Zone Museum has catalogued 1,378 recovered artifacts as part of a government push to end the illegal trade. The Taliban leadership has issued directives forbidding the destruction and trade of artifacts, presenting a complex diplomatic question for the international community: how to cooperate with de facto authorities on heritage protection without granting formal recognition. Although efforts have been made, the country's movable heritage remains at risk.

United States

As one of the world's largest art markets, it serves as a primary market regulator to the issue at hand as the United States is a major destination for trafficked cultural property and they have taken

action through legal framework and aggressive enforcements. The country has implemented import restrictions on cultural property from numerous source countries through bilateral agreements pursuant to the 1970 UNESCO Convention through the **Convention on Cultural Property Implementation Act (CPIA)**, which allows the President to impose import restrictions on artifacts from "at-risk" countries via bilateral agreements. Major repatriation cases have included the return of the Phra Narai lintel to Thailand and thousands of objects to Italy. The Manhattan District Attorney's Office continues to lead global repatriation efforts having returned 17 artifacts (worth \$1.5 million) to Italy and the Vatican in March of 2026.

Turkey

Turkey has a drastically changed approach that now more than ever seems to gravitate towards aggressiveness and non-stop hunting of gone goods over the past 2 decades and it seems to be efficient as Turkey has repatriated no less than 13,449 artifacts (9,134 of these were recovered in just the last eight years) showing a massive acceleration since 2002 according to statistics. In 2025, Turkey secured the return of a rare Roman-era bronze statue of Emperor Marcus Aurelius from the United States. The statue had been smuggled out of the ancient city of Boubon in the 1960s.

Syria and Iraq

These two nations are the epicenter of the link between cultural property trafficking and terrorism. Between 2014 and 2018, ISIS systematically looted archaeological sites in areas like Palmyra (Syria) and Mosul (Iraq). They used antiquities smuggling as a secondary revenue stream to oil sales. The scale of the issue is grand seeing as in Syria only, over 900 monuments and archaeological sites have been affected, damaged, or destroyed since the conflict began in 2011. The UN has noted that the illicit trade in these artifacts fuels regional instability and measures taken are just not good enough including the border import restriction posed by the USA and the moving of mobile heritage into secure storage in Damascus out of looting's way.

UNESCO

UNESCO administers the 1970 Convention and its Intergovernmental Committee for Promoting the Return of Cultural Property to its Countries of Origin (ICPRCP). In September 2025, UNESCO launched the world's first Virtual Museum of Stolen Cultural Objects (during the MONDIACULT 2025 World Conference in Barcelona, Spain), using 3D modeling to display digital replicas of stolen items, with the goal that "one day it will be empty " meaning that eventually, all stolen objects will be returned to their rightful owners and countries of origin, making the virtual museum a testament

to successful restitution rather than a repository of ongoing loss (the museum currently showcases more than 200 stolen cultural objects selected by UNESCO Member States) UNESCO has trained over 1,200 museum and customs professionals from 80 countries and is working to revise the International Code of Ethics for Dealers in Cultural Property.

VI. Timeline of Events

1969	Italy becomes the first country to establish a specialized law enforcement body for cultural heritage protection (the Carabinieri TPC)
1970	The UNESCO Convention on the Means of Prohibiting and Preventing the Illicit Import, Export and Transfer of Ownership of Cultural Property was adopted
1995	The UNIDROIT Convention on Stolen or Illegally Exported Cultural Objects was adopted
2000	The UN Convention Against Transnational Organized Crime (Palermo Convention) was adopted
2016	Operation Pandora is launched, (a now-annual global law enforcement operation targeting cultural goods trafficking)
2018	INTERPOL reports 8,500+ cultural property offences, 91,000 objects stolen, 223,000 seized
2021	Mongolia establishes a special Police Unit on Combatting Illicit Trafficking of Cultural Property
2024	Operation Pandora leads to 37,000+ cultural objects seized across 23 countries
September 2025	UNESCO launches Virtual Museum of

	Stolen Cultural Objects
October of 2025	Eight priceless objects were stolen from the Louvre Museum in Paris

VII. Relevant UN Treaties and Documents

- **Hague Convention (and Protocols) (1954):** Focuses on protection during armed conflict
- **UNESCO Convention (1970):** The primary international instrument for preventing illicit import, export, and transfer of ownership of cultural property
- **UNIDROIT Convention (1995):** Provides uniform legal rules for restitution of stolen and illegally exported cultural objects
- **UN Convention against Corruption (2003):** Can be used to recover cultural property obtained through corrupt practices
- **UN Security Council Resolution 2199 (2015):** Condemns trade in cultural property from Iraq and Syria, specifically linking to terrorist financing
- **UN Security Council Resolution 2347 (2017):** First Security Council resolution devoted entirely to cultural heritage protection; calls for use of INTERPOL database and international cooperation
- **UN General Assembly Resolution 69/196 (2014):** Adopts International Guidelines for Crime Prevention and Criminal Justice Responses with Respect to Trafficking in Cultural Property
- **UN Convention Against Transnational Organized Crime (2000):** Provides framework for international cooperation, mutual legal assistance, and asset forfeiture applicable to cultural property trafficking
- **Council of Europe Nicosia Convention (2017):** Criminalizes unlawful excavation, importation, and acquisition of cultural property

VIII. Previous Attempts to Solve the Issues

The main efforts have been guided towards harmonizing laws all over the world and have faced opposition and several issues. For example, the 1974 LUAB draft on the good faith acquisition of movables has failed to become a useful international tool as its views were contradictory to the ones of countries in need to protect their cultural heritage. Some more recent strategies prioritize implementing technology and capacity building tools.

INTERPOL launched ID-Art app which allows the people and police to scan items and see whether or not they have previously been reported stolen hoping to salvage items and has been proven effective resulting in several high-profile recoveries. However, unless used it serves no purpose and it is not a lot of people that know about it. Moreover, the whole idea is based on coming in direct contact with said stolen goods which is often difficult to achieve as no golden treasure lies before one's eyes.

ICOM red lists: when categories of endangered artefacts (mainly archaeological objects) are identified in vulnerable areas are intended to show authorities which items are at risk.

Evidently, many states (such as Italy, Greece, Turkey, and China) have laws declaring undiscovered cultural property as state property to facilitate its legal recovery if found abroad.

IX. Possible Solutions

- Strengthening the security of all museums, especially the ones with historical meaning.
- Enhanced international cooperation and information sharing to combat cross-border illicit trafficking of cultural property, preventing and disrupting the movement of art traffickers' networks.
- Imposing new standards of verification for buyers, auction houses and galleries, including the request for official documents of provenance before any transaction.

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